

26STCV06468 26STCV06468

County: los-angeles

Division: Civil Law and Motion

Department: 529

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Case Number: 26STCV06468 Hearing Date: September 18, 2026 Dept: 529

MICHAEL BIRKENHEIR VS WHYTE AND MACKAY

AMERICAS LTD, ET AL.

DEFENDANTS' DEMURRER TO THE COMPLAINT

Date of Hearing: September

18, 2026 Trial Date: None

set.

Department: 529 Case

No.: 26STCV06468

Moving Party: Defendants

Whyte and Mackay Americas LTD

Responding Party: No

opposition

Meet and Confer: Yes.

(Fields Decl.)

BACKGROUND

On February 27, 2026, Plaintiff Michael

Birkenheir filed a complaint against Defendants Whyte and Mackay Americas LTD,

Andrew Kulhem Whyte, and Craig Bridger for (1) Whistleblower Retaliation in

Violation of Cal. Lab. Code § 1102.5; (2) Wrongful Retaliation in Violation of

Public Policy; (3) Retaliation in Violation of Cal. Lab. Code §98.6; (4) Failure

to Pay all Wages Due in Violation of Cal. Lab. Code §204 and §218; and (5) Waiting Time Penalties in Violation of Cal. Lab. Code §203.

[Tentative] Ruling

Defendants Whyte and Mackay Americas

LTD's Demurrer to the Complaint is SUSTAINED WITH LEAVE TO AMEND.

DISCUSSION

Defendants Whyte and Mackay Americas

LTD demur to the complaint of Plaintiff Michael Birkenheir on the grounds Plaintiff's fourth cause of action for failure to pay all wages due to violation of Labor Code §§204 and 218 fail to allege whether the alleged bonus was written, oral or implied by contract.

A demurrer for sufficiency tests

whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the construction of instruments pleaded, or facts impossible in law." (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Defendant argues the fourth cause of

action alleges unpaid wages in the form of a bonus. However, it cannot be ascertained from the complaint whether the contract for Plaintiff's alleged unpaid bonus is written, oral, or implied by conduct.

The court finds the cause of action is

unclear as to whether the bonus claim rests on express promises, contractual

establishment, or implied contract based on representations. (See Compl. ¶54.) While a statutory claim for unpaid wages does not typically require Plaintiff to allege whether the underlying agreement was oral, written, or implied by conduct, the court finds ambiguity in the allegations.

Based on the foregoing, the demurrer is
SUSTAINED WITH 20 DAYS LEAVE TO AMEND.